

TechFlow Terms of Service & Subscription Agreement

Effective Date: January 1, 2023

1. SUBSCRIPTION PLANS & PRICING

Available Plans

We offer the following subscription tiers for our services:

Basic Plan

- Monthly: \$9.99/month
- Annual: \$99.90/year (save 17%)
- Includes: 50 API calls/month, 1 user seat, email support

Professional Plan

- Monthly: \$29.99/month
- Annual: \$299.90/year (save 17%)
- Includes: 5,000 API calls/month, 5 user seats, priority email support, integrations

Enterprise Plan

- Custom pricing based on requirements
- Includes: Unlimited API calls, custom user seats, dedicated account manager, 24/7 phone support, SLA guarantee

Price Changes

TechFlow reserves the right to modify subscription pricing with 30 days' notice. Price changes apply to new subscriptions and renewals. Existing active subscriptions maintain current pricing until renewal.

Billing & Payment

- Subscriptions are billed monthly or annually in advance
 - Payment is automatically charged on the renewal date
 - We accept major credit cards, bank transfers, and wire payments (Enterprise only)
 - Failed payments will result in service suspension after 3 days
 - Tax will be added to invoice for customers in applicable jurisdictions
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2. REFUND & CANCELLATION POLICY

Refund Window

- **14-day money-back guarantee** for new subscriptions (from activation date)
- Refunds apply to full subscription cost minus any usage credits
- Refunds are issued to original payment method within 5-7 business days

Cancellation

- Customers may cancel at any time through account settings
- Cancellation is effective at end of current billing period
- No refund for remaining unused subscription time
- Customer data is retained for 30 days after cancellation for recovery

Non-Refundable Items

- Custom professional services, consulting, or training
- Third-party integrations or extensions
- Administrative fees for account modifications
- Overage charges beyond plan limits

Chargeback Policy

Customers who initiate chargebacks without attempting to resolve issues through our support team will have their accounts permanently suspended. TechFlow reserves the right to recover associated costs and pursue legal action.

3. SERVICE LEVEL AGREEMENT (SLA)

Uptime Guarantee

- **99.5% uptime guarantee** (excluding scheduled maintenance)
- Scheduled maintenance: Up to 4 hours monthly (typically 2 AM - 6 AM UTC)
- Maintenance notifications sent 48 hours in advance

Response Times

- **Critical Issues (service down):** 1-hour response, 4-hour resolution target
- **High Priority (functionality impaired):** 4-hour response, 24-hour resolution target
- **Medium Priority (degraded performance):** 8-hour response, 48-hour resolution target
- **Low Priority (feature requests, how-to):** 24-hour response, 5-day resolution target

SLA Credits

If we fail to meet uptime commitments:

- 95-99.5% uptime: 10% service credit
- 90-95% uptime: 25% service credit
- Below 90% uptime: 50% service credit

Credits are applied to next month's invoice. Repeated SLA breaches may result in additional compensation or account review.

4. PAYMENT PROBLEMS & DISPUTES

Duplicate Charges

If a customer is charged multiple times for a single transaction:

- Full refund for duplicate charges within 30 days
- Investigation for charges older than 30 days
- Credits or refunds determined on case-by-case basis

Incorrect Charges

If a customer is charged for a service they did not subscribe to:

- Full refund within 7 days of dispute notification
- Service suspension to prevent further charges
- Account review to determine root cause

Disputed Transactions

Customers must report disputed transactions within 60 days of charge date. We investigate disputes and respond within 10 business days. Disputes over \$500 or involving multiple transactions are escalated to our Billing Manager.

Failed Payments

- First failed payment: Immediate notification via email
 - Retry attempt: Automatic retry after 3 days
 - Second failure: Account services suspended
 - Third failure: Account locked, requires manual intervention to restore
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5. DATA STORAGE, SECURITY & PRIVACY

Data Storage

- Customer data is stored in secure, encrypted databases
- Backups are performed daily with 30-day retention
- Data is hosted in US-based servers (ISO 27001 certified)
- Customers may request data migration or export at any time

Data Retention After Cancellation

- Active customer data: Retained indefinitely while account is active
- Deleted data: Permanently removed 30 days after deletion request
- Backup copies: Retained for 60 days for disaster recovery purposes
- Legal holds: Data retained per regulatory requirements

Data Privacy

TechFlow complies with GDPR, CCPA, and other applicable regulations:

- Personal data is not shared with third parties without consent
- Customers have the right to access, modify, or delete their data
- Data deletion requests are processed within 30 days
- Privacy policy is available at <https://techflow.com/privacy>

Security Incidents

In case of a security breach:

- Affected customers notified within 48 hours
 - Breach details provided with remediation steps
 - Free credit monitoring offered if personal data exposed
 - Incident report available upon request
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6. ACCOUNT SUSPENSION & TERMINATION

Reasons for Account Suspension

- Violation of Terms of Service or Acceptable Use Policy
- Non-payment after 14 days of notice
- Unauthorized access or account compromise
- Suspicious activity or fraud indicators
- Legal or regulatory requirements

Suspension Process

1. Customer receives email notification with reason
2. Customer has 7 days to respond or remedy violation
3. If unresolved, account is suspended (data still accessible)
4. After 30 days of suspension, account may be permanently deleted

Account Termination

- Accounts inactive for 12+ months may be terminated
- Notice of termination sent 30 days in advance
- Customer may request data export before deletion
- Final invoice issued for any outstanding charges

Reinstatement

- Suspended accounts may be reinstated if violation is remedied
 - Reinstatement requires written request and compliance agreement
 - Data recovery possible within 30 days of suspension
 - Reinstatement fees may apply (\$50-\$250 depending on reason)
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7. ACCEPTABLE USE POLICY

Prohibited Activities

Customers agree NOT to:

- Use the service for illegal purposes or to violate any laws
- Send spam, malware, or phishing content
- Attempt to gain unauthorized access to systems
- Reverse engineer, decompile, or abuse the service
- Resell or redistribute service access to others
- Use service for cryptocurrency mining or bot traffic generation
- Engage in competitive intelligence or market research without permission

Monitoring & Enforcement

TechFlow reserves the right to:

- Monitor usage patterns for abuse
 - Throttle or block accounts with excessive usage
 - Terminate accounts that violate acceptable use policies
 - Cooperate with law enforcement for illegal activities
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8. INTELLECTUAL PROPERTY & USER CONTENT

Ownership of Platform

TechFlow retains all intellectual property rights to the platform, software, and services.

Customer Content License

Customers grant TechFlow a non-exclusive license to:

- Use customer content to provide and improve services
- Store and backup customer data
- Create anonymized analytics for service improvement
- Share with business partners (e.g., cloud hosting providers) as necessary

Customer Responsibilities

Customers warrant they have rights to all content uploaded and agree to indemnify TechFlow for third-party claims related to content.

9. LIMITATION OF LIABILITY

Disclaimer

THE SERVICE IS PROVIDED "AS IS" WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED. TECHFLOW DOES NOT GUARANTEE:

- Uninterrupted service availability
- Error-free operation
- Compatibility with all devices or software
- Security or privacy of all data

Liability Cap

TECHFLOW'S TOTAL LIABILITY SHALL NOT EXCEED THE GREATER OF: (A) THE AMOUNT PAID IN THE LAST 12 MONTHS, OR (B) \$500.

TECHFLOW SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES, INCLUDING LOST PROFITS OR DATA LOSS, EVEN IF ADVISED OF SUCH DAMAGE.

Exceptions

Liability limitations do not apply to: (a) death or personal injury, (b) fraud or intentional misconduct, (c) gross negligence, (d) statutory rights that cannot be waived by contract.

10. FEATURE REQUEST & BUG REPORT POLICY

Feature Requests

- Feature requests do not guarantee implementation
- Popular requests are prioritized but not guaranteed
- Estimated development timelines are subject to change
- Customers submitting feature requests grant TechFlow rights to implement similar features for other customers

Bug Reports

- Critical bugs (service unavailable): 4-hour response target
- Major bugs (functionality broken): 24-hour response target
- Minor bugs (inconveniences): 5-day response target
- Bug fixes may require customer system updates or configuration changes

Known Limitations

Current product limitations include:

- API rate limit: 10,000 requests/hour (Enterprise: unlimited)
 - File size limit: 500MB per upload
 - Storage limit: Per subscription tier
 - Concurrent users: Limited by subscription plan
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11. TERMINATION & DISCONTINUATION OF SERVICE

Service Discontinuation

TechFlow may discontinue services with 90 days' notice to all customers:

- Users receive email notification of discontinuation date
- Data export available for 60 days after discontinuation
- Refund of prepaid service fees (prorated) issued within 30 days
- Migration assistance provided for Enterprise customers

Feature Deprecation

Deprecated features receive 60-day notice before removal:

- Alternatives or migration paths are provided
 - Customers have time to update integrations
 - Support continues during transition period
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12. AMENDMENTS TO TERMS

TechFlow may modify these Terms of Service at any time. Changes become effective 30 days after posting to website. Continued use of the service constitutes acceptance of amended terms. For material changes, email notification is sent to account email address.

13. CONTACT & DISPUTE RESOLUTION

Support Channels

- **Email:** support@techflow.com (24-48 hour response)
- **Chat:** In-app chat (business hours, 1-2 hour response)
- **Phone:** 1-800-TECHFLOW (Enterprise customers only)

Dispute Resolution Process

1. Customer contacts support with detailed description
2. Support team investigates and responds with findings
3. If unresolved, escalation to manager within 5 business days
4. If still unresolved, escalation to executive team
5. Final resolution within 30 days

Governing Law

These terms are governed by the laws of the State of California. Any disputes shall be resolved through binding arbitration rather than court proceedings.

Last Updated: January 2023 Version: 2.1